

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address) ROBERT K. HANNA, State Bar No.: 341970 / JUNQIAO XIAO, State Bar No.: 341670 / HYO JIN JULIA JUNG, State Bar No.: 316090 / MICHAEL D. KAHN, State Bar No.: 236898 / LAMONT FREEMAN, State Bar No.: 349862 MIDLAND CREDIT MANAGEMENT, INC. 350 CAMINO DE LA REINA, SUITE 100 SAN DIEGO, CA 92108 CA Debt Collector License Number Pending TELEPHONE NO.: (866) 300-8750 FAX NO.: (858) 309-1588 E-MAIL ADDRESS (Optional): CaliforniaLegal@MCMCG.com ATTORNEY FOR (Name): Midland Credit Management, Inc.	FOR COURT USE ONLY FILED Superior Court of California County of Los Angeles 05/03/2024 David W. Slayton, Executive Officer / Clerk of Court By: <u>H. Martinez</u> Deputy
SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES STREET ADDRESS: 9425 PENFIELD AVE. MAILING ADDRESS: CITY AND ZIP CODE: CHATSWORTH CA 91311 BRANCH NAME: CHATSWORTH COURTHOUSE NORTH VALLEY DISTRICT	
PLAINTIFF/PETITIONER: Midland Credit Management, Inc. DEFENDANT/RESPONDENT: THOMAS TERNUS	
REQUEST FOR DISMISSAL	
CASE NUMBER: 24CHLC00819	
A conformed copy will not be returned by the clerk unless a method of return is provided with the document.	
This form may not be used for dismissal of a derivative action or a class action or of any party or cause of action in a class action. (Cal. Rules of Court, rules 3.760 and 3.770.)	

1. **TO THE CLERK:** Please **dismiss** this action as follows:

- a. (1) ☐ With prejudice (2) ☒ Without prejudice
 b. (1) ☐ Complaint (2) ☐ Petition
 (3) ☐ Cross-complaint filed by (name):
 (4) ☐ Cross-complaint filed by (name):
 (5) ☐ Entire action of all parties and all causes of action
 (6) ☒ Other (specify):* Does 1 through 10 inclusive

on (date):

on (date):

2. (Complete in all cases except family law cases.)

The court ☐ did ☒ did not waive court fees and costs for a party in this case. (This information may be obtained from the clerk. If court fees and costs were waived, the declaration on the back of this form must be completed.)

Date: 4.15.24

☒ ROBERT K. HANNA / ☐ JUNQIAO XIAO
☒ MICHAEL D. KAHN / ☐ HYO JIN JULIA JUNG
☒ LAMONT FREEMAN

(TYPE OR PRINT NAME OF ☒ ATTORNEY ☐ PARTY WITHOUT ATTORNEY)

* If dismissal requested is of specified parties only, of specified causes of action only, or of specified cross-complaints only, so state and identify the parties, causes of action, or cross-complaints to be dismissed.

Attorney or party without attorney for:

- ☒ Plaintiff/Petitioner ☐ Defendant/Respondent
☐ Cross-Complainant

(SIGNATURE)

3. **TO THE CLERK:** Consent to the above dismissal is hereby given.**

Date:

(TYPE OR PRINT NAME OF ☐ ATTORNEY ☐ PARTY WITHOUT ATTORNEY)

(SIGNATURE)

** If a cross-complaint—or Response (Family Law) seeking affirmative relief—is on file, the attorney for cross-complainant (respondent) must sign this consent if required by Code of Civil Procedure section 581(i) or (j).

Attorney or party without attorney for:

- ☐ Plaintiff/Petitioner ☐ Defendant/Respondent
☐ Cross-Complainant

(To be completed by clerk)

4. ☐ Dismissal entered as requested on (date):
 5. ☐ Dismissal entered on (date):
 6. ☒ Dismissal **not entered** as requested for the following reasons (specify):

as to only Previously dismissed on 03/01/2024 (name):

7. ☒ a. Attorney or party without attorney notified on (date): 05/03/2024
 b. Attorney or party without attorney not notified. Filing party failed to provide
☐ a copy to conform ☐ means to return conformed copy

Date: 05/03/2024

Clerk, by H. Martinez, Deputy

PLAINTIFF/PETITIONER: MIDLAND CREDIT MANAGEMENT, INC.
 DEFENDANT/RESPONDENT: THOMAS TERNUS

CASE NUMBER
 24CHLC00819

COURT'S RECOVERY OF WAIVED COURT FEES AND COSTS

If a party whose court fees and costs were initially waived has recovered or will recover \$10,000 or more in value by way of settlement, compromise, arbitration award, mediation settlement, or other means, the court has a statutory lien on that recovery. The court may refuse to dismiss the case until the lien is satisfied. (Gov. Code, § 68637.)

Declaration Concerning Waived Court Fees

1. The court waived fees and costs in this action for *(name)*:
2. The person named in item 1 is *(check one below)*:
 - a. ☐ not recovering anything of value by this action.
 - b. ☐ recovering less than \$10,000 in value by this action.
 - c. ☐ recovering \$10,000 or more in value by this action. *(If item 2c is checked, item 3 must be completed.)*
3. ☐ All court fees and costs that were waived in this action have been paid to the court (check one): ☐ Yes ☐ No

I declare under penalty of perjury under the laws of the State of California that the information above is true and correct.

Date: _____

 (TYPE OR PRINT NAME OF ☐ ATTORNEY ☐ PARTY MAKING
 DECLARATION)



 (SIGNATURE)